

### **Calendar Line 3**

**Case Name:** *Treespring Investments, LP v. James Rautner, et al.*

**Case No.:** 22CV407249

Plaintiff Treespring Investments, LP (“Plaintiff” or “Treespring”) filed the instant action for concealment and breach of fiduciary duty, among other causes of action, arising out of a business dispute between itself and defendants James Rautner (“Rautner”) and Dennis V. Pollutro (“Pollutro”) (collectively, “Defendants”).

Before the Court is Plaintiff’s motion to compel further responses to its special interrogatories and requests for production of documents. The motion is opposed.

As discussed below, the Court DENIES the motion to compel as to the RFPs but GRANTS it as to the SIs.

### **X. BACKGROUND**

In the operative first amended complaint (“FAC”), Plaintiff alleges Defendants were founders, officers, directors, and shareholders of Eclipz.io, Inc. (“Eclipz”). (FAC, ¶¶ 5-6, 11.) Rautner was the Chief Operating Officer (“COO”) and its Chief Financial Officer (“CFO”), while Pollutro was its Chief Technology Officer (“CTO”). (FAC, ¶¶ 5-6.) Defendants were also founders and owners of SDSE Networks, LLC (“SDSE”), which is the same business as Eclipz. (FAC, ¶¶ 11-12.) Plaintiff alleges Defendants used Eclipz assets to improperly advantage Defendants’ other company and Eclipz predecessor, SDSE. (FAC, ¶¶ 3, 17, 20, 22.) Among other things, Defendants concealed material information and solicited Plaintiff to become an investor in Eclipz. (FAC, ¶¶ 17-20.)

Based on the foregoing, Plaintiff initiated this action on November 23, 2022, with the filing of the complaint, and on June 24, 2024, it filed the operative FAC, which asserts the following causes of action: (1) concealment; (2) violation of Corporations Code sections 25400, subd. (d), 25401, 25504, & 25504.1; (3) breach of fiduciary duty; (4) constructive fraud; (5) intentional interference with contractual relations; and (6) intentional interference with prospective economic advantage.

### **XI. PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES**

Plaintiff moves to compel further responses to the entirety of their requests for production (“RFPs”), sets four and five; supplemental requests for production, set one; special interrogatories, set three; and supplemental special interrogatories, set one.

#### **A. Legal Standards**

##### **i. Requests for Production**

A party propounding a request for production may move for an order compelling a further response if it deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth “specific facts showing good cause

justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) Good cause is established simply by a fact-specific showing of relevance. (*Kirkland, supra*, 95 Cal.App.4th at p. 98.) If good cause is shown, the burden shifts to the responding party to justify any objections. (*Ibid.*) Objections must be tailored to each discovery request. (*Scottsdale Inc. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 275; *Standon Co. v. Super. Ct.* (1990) 225 Cal.App.3d 898, 901 [construing the objection of “vague, ambiguous, and unintelligible” as a nuisance objection].)

## **ii. Interrogatories**

A responding party must provide non-evasive answers to interrogatories that are “as complete and straightforward...to the extent possible,” and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (Code Civ. Proc., § 2030.220.) If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party’s remedy is to seek a court order compelling a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (a).)

## **B. DISCUSSION**

Plaintiff moves to compel further responses to the entirety of their requests for production (“RFPs”), sets four and five; supplemental requests for production, set one; special interrogatories (“SIs”), set three; and supplemental special interrogatories, set one.

### **i. Defendants’ Request for Judicial Notice**

Defendants request judicial notice of (1) the docket in *In re SDSE Networks, Inc.*, United States Bankruptcy Court, District of Delaware, Case No. 24-10738-CTG; (2) the Order Approving the Chapter 7 Trustee’s Sale of Substantially All of the Debtor’s Assets, entered April 11, 2025, together with the Asset Purchase Agreement, in *In re SDSE Networks, Inc.*, No. 24-10738-CTG; (3) the Chapter 7 Trustee’s Final Account and Distribution Report, filed December 5, 2025, in *In re SDSE Networks, Inc.*, No. 24-10738-CTG, listing Treespring Investments, LP as the holder of Claim No. 22; (4) the Voluntary Petition for Bankruptcy, filed October 30, 2023, in *In re Eclipz.io, Inc.*, United States Bankruptcy Court, Northern District of California, Case No. 23-51253-SLJ, including its schedules of creditors; (5) the Order Approving Stipulation Between the Chapter 7 Trustee, Treespring Investments, LP, James Rautner, Dennis Pollutro, and Hogan Lovells US LLP, entered April 3, 2025 (Docket No. 31), in *In re SDSE Networks, Inc.*, No. 24-10738-CTG, approving the Stipulation Governing the Production of Confidential Information and authorizing the parties to access Hogan Lovells’s archived litigation database.

The documents listed above are court records and a proper subject of judicial notice under Evidence Code section 452, subdivision (d). Accordingly, the request for judicial notice is GRANTED.

### **ii. Timeliness of the Motion**

Defendants argue that the motion is untimely because it was filed after the fact discovery cutoff. Code of Civil Procedure section 2024.020, subdivision (a) provide provides, “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.”

Here, the parties entered into a stipulation to continue the trial date, which had been set for January 20, 2026. The stipulation stated, in part, “WHEREAS, the Parties stipulate that the fact discovery cut-off shall remain based upon the current trial date of January 20, 2026, but that expert discovery deadlines not already passed will be based upon the new trial date. No new fact discovery shall be allowed as a matter of right, but the Parties agree they reserve all rights regarding outstanding discovery issues.” (Declaration of James O’Donnell in Support of Motion (“O’Donnell Decl.”), Ex. O, ¶ 6.)

Plaintiff contends that the discovery requests at issue were served on Defendants November 17, 2025 and November 21, 2025. (O’Donnell Decl., ¶¶ 7-16.) Thus, it asserts that this discovery was pending on December 18, 2025 when the parties entered into the stipulation and the reservation of rights regarding outstanding discovery issues contained in paragraph 6 of the stipulation allows them to pursue the instant motion.

Defendants, on the other, argue that the motion was not pending at the time the stipulation was entered and it had to be heard on or before the 15<sup>th</sup> day before the original trial date of January 20, 2026. Instead, the motion was not filed until April 2, 2026.

It is arguable that the reservation of rights language would allow the motion to be heard after the discovery cutoff date. In any event, to hold that Plaintiff may not make the motion at this time, would simply require Plaintiff to make a motion to reopen discovery under Code of Civil Procedure section 2024.050. Because the motion is fully briefed, it would be inefficient and a waste of resources for the court to require a motion to reopen. Accordingly, the court will reach the merits of the motion.

### **iii. Merits of the Motion**

#### **1. Requests for Production**

Due to the number of RFPs at issue, the court will not reproduce the text of the requests here. Suffice it to say that the RFPs fall into three main categories: (1) a request that Respondents supplement their prior productions (supplemental requests for production, set one), (2) requests for documents related to government work allegedly performed by SDSE and/or Eclipz and related confidentiality or security concerns (RFPs, set four), and (3) requests for documents related to how items were stored (RFPs, set five). Defendants responded to all RFPs with only objections.<sup>2</sup>

As to all RFPs, Defendants argue that Plaintiff has failed to show good cause for the further responses it seeks. (*Kirkland, supra*, 95 Cal.App.4th at p. 98.) As Defendants point out,

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<sup>2</sup> Plaintiff separately propounded its discovery requests on Defendants Rautner and Pollutro and the numbering of the requests differs but the substance of the requests is the same.

Plaintiff has not filed a separate statement as required by Rules of Court, rule 3.1345(a)(1) and (a)(3). The court has discretion to deny a motion to compel where the separate statement is missing or deficient. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.) Plaintiff argues that a separate statement is unnecessary because they have supported their requests with evidence, namely the deposition testimony of Defendants. But, the motion itself fails to make a fact-specific showing of relevance as to each request.<sup>3</sup> Accordingly, the court will find that Plaintiff has not shown good cause for the further responses it seeks. Thus, the burden does not shift to the Defendants to justify their objections. (*Kirkland, supra*, 95 Cal.App.4th at p. 98.)

Here, the FAC provides, “Acting under the direction of DEFENDANTS, SDSE now claims it has no obligation to turn over ECLIPZ’s source code and that the intellectual property at issue belongs to SDSE. SDSE has also claimed that it cannot turn over the requested intellectual property because it purportedly contains government secrets. None of this was ever disclosed to TREESPRING. Instead, DEFENDANTS took TREESPRING’S investment under the guise that it would be used to build and protect ECLIPZ intellectual property, but instead used it for the benefit of themselves and their company, SDSE. This caused direct harm to TREESPRING, by depriving it from the benefit of its multi-million dollar investment.” (FAC, ¶ 25.)

In response to Defendants’ argument, Plaintiff points to portions of the memorandum of points and authorities in support of the motion as examples of their good cause showing. In the memorandum, Plaintiff stated, regarding RFPs, set four, “The requests are directly relevant because Defendants induced Plaintiff’s investment by repeatedly representing that the technology behind Eclipz was developed for and funded by the U.S. government. [Citations to deposition testimony.] Defendants further represented that they would deliver the Eclipz 1.0 source code to the company only after decoupling it from the government version, which they claimed contained classified components. [Citations to deposition testimony.] These statements make the requested documents central to assessing the truth of Defendants’ representations and Plaintiff’s resulting reliance.” (Memorandum in Support of Motion (“Memorandum”), p. 7:12-20.)

It also points to language in the memorandum indicating that “document[s] related to GitHub are directly relevant to this matter. Defendants stored the Eclipz source code on a GitHub repository inaccessible to Eclipz employees, while SDSE engineers had access and billed Eclipz millions for work on the technology. [Citations to deposition testimony.] Further, Defendants’ testimony suggests that none of the investors in Eclipz were ever informed or otherwise aware that the source code for the Eclipz technology was stored on a GitHub that could not be accessed by any Eclipz employee. [Citations to deposition testimony.] [¶] Document and communication requests with respect to SDSE are similarly relevant because engineers from SDSE actually had access to the source code on the GitHub on which the source code for the Eclipz technology was stored. [Citations to deposition testimony.] Moreover, Defendants were the founders and owners of SDSE, and SDSE billed Eclipz millions of dollars for work supposedly

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<sup>3</sup> Should the court decide that a separate statement is necessary, Plaintiff asks that the court continue the hearing on the motion so that it may provide one. The court denies this request because to allow Plaintiff to file a separate statement at this time would be to give it a second bite of the apple.

done on the technology. Accordingly, communications and other documents held in relation to SDSE are likely to contain information regarding Defendants' intentions with respect to the withholding of information from Eclipz officers and investors." (Memorandum, p. 8:11-24.)

In general, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

It is clear that some discovery into SDSE's dealings with the U.S. government would be relevant. But, that would not entitle Plaintiff to all of the discovery sought and the court is not required to fill in the good cause analysis Plaintiff fails to provide. (See *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to "comb the record and the law for factual and legal support that a party has failed to identify or provide"].) For example, Plaintiff seeks, in RFPs, set four, "ALL DOCUMENTS related to SDSE's policies regarding SDSE employees' use of personal devices when working on classified material with or for the United States Government" and "ALL DOCUMENTS related to SDSE's policies regarding SDSE employees' use of personal devices when working on any source code projects." It is not clear how these policies are relevant or could lead to discoverable information, let alone how all documents related to same could be relevant.

Additionally, the requests related to the storage of the source code are incredibly broad. For example, two of the requests contained in RFPs, set five, seek, "All DOCUMENTS and COMMUNICATIONS RELATED TO Confluence" and "All DOCUMENTS and COMMUNICATIONS RELATED TO GitHub." These requests are not limited as to time or subject matter and Plaintiff has not shown good cause for same.

Even as to the supplemental request, Plaintiff states merely that such a request is authorized under Code of Civil Procedure section 2031.050.

The motion to compel is DENIED as it relates to the RFPs for failure to provide a separate statement and failing to show good cause for the further responses sought.

## **2. Special Interrogatories**

As to the special interrogatories, no good cause showing is required.

SI no. 25 (Rautner) or 45 (Pollutro) states, "Identify with specificity each technology, intellectual property ("IP"), resource, software, code (including without limitation any object or source code), development or support tool, application programming interface ("API"), test harness, instance, interface, or other information YOU actually conveyed, delivered, or provided to ECLIPZ, including the date on which each was conveyed, delivered, or provided." Defendants responded only with objections.

Defendants contend that no further response is required because the entirety of SDSE's assets have been sold by the bankruptcy trustee in its bankruptcy case. However, the Court agrees with Plaintiff that if Defendants do not have the ability to respond to the SI, it should so state in a verified response rather than object on this ground. (Code Civ. Proc., § 2030.220, subd. (b) ["If an interrogatory cannot be answered completely, it shall be answered to the extent possible."]; id., subd. (c) ["If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."].) Accordingly, the motion is GRANTED as to SI no. 25 (Rautner) or 45 (Pollutro).<sup>4</sup>

SI no. 26 (Rautner) or 46 (Pollutro) requests that Defendants "[s]tate all facts that support YOUR contention that Eclipz was capable of operating or succeeding as a standalone entity." Defendants responded with only objections. In their separate statement, Defendants cite their response to the request, inexplicably followed by the full text of a proof of service, then reiterate their objections without expanding on them, and finally, despite agreeing that they have the burden to justify their objections, indicate that Plaintiff has not made a fact-specific showing of relevance. As Defendants admit repeatedly throughout their briefing, they have the burden to justify their objections. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-221 (*Coy*) [If a timely motion to compel is filed, the burden is on the responding party to justify any objection].) They have not done so by simply reiterating their objections. Notably, they also assert that the document demand seeks documents without regard to time but this is a special interrogatory, not a document demand. Accordingly, the motion is GRANTED as to SI no. 26 (Rautner) or 46 (Pollutro).

Supplemental SI no. 1 states, "Please review your responses to Treespring's special interrogatories, sets one and two, previously served on you in this action. If any of your responses are no longer true, accurate, or complete, or if any answer has changed in any way, please identify the special interrogatory, your previous response(s), and provide any information necessary to render the response complete and correct as of the date of Defendant's response to this supplemental request." Defendants responded only with objections.

Code of Civil Procedure section 2030.070, subdivision (a) provides, "In addition to the number of interrogatories permitted by Sections 2030.030 and 2030.040, a party may propound

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<sup>4</sup> Defendants also argue in their separate statement that "the request is overbroad and unduly burdensome, demanding all documents without limitation as to time, and the propounding party has made no specific showing of relevance (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216); the materials are equally or more readily available to Treespring, which possesses the entirety of Eclipz.io's electronically stored information and a production of SDSE's electronically stored information, and which this Court found has unfettered access to the Eclipz database (Code Civ. Proc., section 2019.030, subd. (a); Order, Dec. 17, 2025); the entire Hogan Lovells archived litigation database resides with Treespring's vendor, while Defendants received only the documents responsive to the parties' agreed search terms, so Treespring demands that Defendants reproduce from a far smaller subset the very prior-litigation records Treespring already holds in full." But, it appears to the Court that this argument is addressed to requests for production rather than interrogatories.

a supplemental interrogatory to elicit any later acquired information bearing on all answers previously made by any party in response to interrogatories.” Defendants assert that supplemental SI 1 goes beyond what is required by Code of Civil Procedure section 2030.070 because it requests a wholesale reevaluation of their previous responses rather than simply seeking later-acquired information. The court does not read supplemental SI 1 to go beyond what is required by section 2030.070 simply because it asks that Defendants review their previous responses. Instead, reviewing the previous responses is likely necessary to determine if any later-acquired information requires a change in the response. The motion is GRANTED as to supplemental SI 1.

## **XII. CONCLUSION**

Plaintiff’s motion to compel further responses is DENIED as to the RFPs without prejudice to seeking similar but more tailored discovery and making a motion to reopen discovery. The motion is GRANTED as to the SIs. Defendants must provide further verified responses to the SIs within 20 days of the date of the court’s final order on this matter.

The Court will prepare the final order.

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#### **Calendar Line 4**

Case Name:

Case No.:



## **Calendar Line 5**

**Case Name:** *Grey v. Pacific Coast Logistix, et al.*

**Case No.:** 23CV425509

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiff Carol Grey alleges defendant Pacific Coast Logistix committed various wage and hour violations.

Before the Court is Plaintiff’s motion for preliminary approval of class action and PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

## **IX. BACKGROUND**

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff was a vendor employed by Defendant. (FAC, ¶ 10.) She was employed as an independent contractor and worked in Santa Clara County. (*Ibid.*) Plaintiff alleges Defendant misclassified vendors as independent contractors rather than employees, denying them the benefits of employment and shifting the costs of doing business onto the employees who carry out the delivery duties for Defendant. (FAC, ¶¶ 26, 50.) Defendant also failed to: reimburse for business expenses; properly pay Plaintiff and class members; pay wages due upon termination; (FAC, ¶¶ 55-62.)

Plaintiff initiated this action on November 8, 2023, with the filing of the complaint and on March 26, 2024, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay all wages owed upon termination; (2) failure to timely pay earned wages; (3) failure to provide itemized wage statements; (4) failure to provide rest and meal periods; (5) failure to pay minimum wages; (6) failure to reimburse business expenses; (7) unfair business practices; and (8) PAGA penalties.

Plaintiff moves for an order: granting class certification for settlement purposes; preliminarily approve the Stipulated Settlement Agreement (the “Settlement”); appointing Adrian R. Bacon, Todd M. Friedman, Meghan E. George, and Matthew R. Snyder of the Law Offices of Todd M. Friedman, and Adib Assassi and Veronica Cruz of the Law Offices of Assassi & Cruz Law Firm, PC as Class Counsel; (4) appointing Plaintiff as the Class Representative; (5) approving the use of the proposed notice procedure and related forms; (6) directing that the Class Notice be mailed to the Class; (7) scheduling a hearing date for a final approval hearing; and (8) approving the PAGA settlement.

## **X. LEGAL STANDARDS FOR SETTLEMENT APPROVAL**

### **C. Class Action**

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)